

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

August 6, 2026

8:30 a.m./1:30 p.m.

10. DONNA REGENNITTER V. ROBERT REGENNITTER

24FL0818

On May 8, 2026, Petitioner filed a Request for Order (RFO) to compel responses to form interrogatories. She served the RFO by mail the same day as filing, however she did not serve the Notice of Tentative Ruling nor a blank FL-320 as required.

On May 26th, Petitioner filed an RFO to compel Respondent's Preliminary Declaration of Disclosure (PDD) and an amended motion to compel form interrogatories. All required documents were served on June 11th.

On July 16th, Respondent filed and served a Responsive Declaration to Request for Order and a Memorandum of Points and Authorities in support thereof.

Petitioner filed and served her reply declaration on July 29th.

According to Petitioner, she served Form Interrogatories – Family Law on February 9, 2026 thereby making responses due on March 16, 2026. She asks the court to compel Respondent to provide full and complete discovery responses and issue sanctions sufficient to deter future non-compliance. Likewise, she asks the court to order Respondent to serve an amended PDD and issue sanctions for non-compliance.

Respondent opposes the request to compel further disclosures on his PDD. He argues that his disclosures were sufficiently complete, Petitioner failed to meet and confer in good faith, and she failed to attach the PDD to her motion. He further opposes the request for sanctions arguing that he has acted with substantial justification.

Family Code section 2104 imposes on each party the obligation of making a preliminary disclosure of assets within the timeframe specified. For the party responding to a Petition for Dissolution, the disclosure is due either concurrently with the response or within 60 days of filing the same. Where a party fails to comply with Section 2104, the complying party may, among other things, file a motion to compel and seek sanctions against the noncomplying party. Fam. Code § 2107(b)(1). As with other law and motion matters, the moving party bears the burden of establishing the necessity for an order compelling further disclosures. See *Williams v. Sup. Ct.*, 3 Cal. 5th 531 (2017).

Here, Petitioner has failed to meet her burden. Petitioner attached only a copy of her meet and confer letter, however, she did not attach a copy of Respondent's PDD. Without that, the court is unable to make a determination regarding the sufficiency of the

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responses. As such, the request for an order compelling further disclosures is denied. So too is the request for sanctions.

Turning to the request for further responses to form interrogatories, on receipt of responses to form interrogatories, the requesting party may move for an order compelling further responses where the initial responses are not in compliance with the Civil Discovery Act. Cal. Civ. Pro. § 2030.300. A motion to compel further responses shall include a separate statement which complies with California Rules of Court rule 3.1345.

While Petitioner attaches her meet and confer letter which provides a summary of the responses she feels are inadequate, this is not in conformance with Rule 3.1345. The separate statement must include, among other things, the following information for each discovery request such that the reader need not refer to any other pleading: “(1) The text of the request...; (2) The text of each response, answer, or objection and any further responses or answers; (3) A statement of the factual and legal reasons for compelling further responses, answers, or production as to each matter in dispute...” Cal. Rule Ct. 3.1345(c). Petitioner’s summary of the alleged deficiencies does not provide the requisite information needed for the court to rule on the motion. Without the requisite separate statement, Petitioner has failed to establish the need for further responses and sanctions. The requests are therefore denied.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #10: THE REQUESTS FOR FURTHER FORM INTERROGATORIES AND SANCTIONS ARE DENIED. THE REQUESTS FOR FURTHER PRELIMINARY DISCLOSURES AND SANCTIONS ARE ALSO DENIED.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT’S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO*

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LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.